

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
JEFFREY THEODAT,

Plaintiff,

-against-

THE CITY OF NEW YORK, SGT. ALAN CHAU,
P.O. MOHAMMED RAHIM and
P.O. DELIO FERNANDEZ,

Defendants.

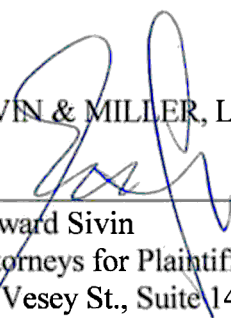
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 17, 2018

SIVIN & MILLER, LLP

By


Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: c/o Zachary W. Carter, Esq., 100 Church St., New York, NY 10007

Sgt. Alan Chau, c/o NYPD 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226

P.O. Mohammed Rahim, c/o NYPD 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226

P.O. Delio Fernandez, c/o NYPD 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JEFFREY THEODAT,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, SGT. ALAN CHAU,
P.O. MOHAMMED RAHIM and
P.O. DELIO FERNANDEZ,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a citizen of the United States and a resident of the State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the state-law causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the state-law causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, maintained, and supervised the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant Sgt. Alan Chau (hereinafter "Chau") was and is a sergeant employed by the NYPD.

6. That at all times herein mentioned, Chau was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Chau was acting under color of state law.

8. That at all times herein mentioned, defendant P.O. Mohammed Rahim (hereinafter "Rahim") was and is an officer employed by the NYPD.

9. That at all times herein mentioned, Rahmin was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Rahmin was acting under color of state law.

11. That at all times herein mentioned, defendant P.O. Delio Fernandez (hereinafter "Fernandez") was and is an officer employed by the NYPD.

12. That at all times herein mentioned, Fernandez was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, Fernandez was acting under color of state law.

THE FACTS

14. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

15. That at all times herein mentioned, plaintiff owned and operated a retail business located at 786 East 46th Street, in Brooklyn, NY.

16. That on July 22, 2017, NYPD officers, including but not limited to Chau, Rahim, and Fernandez (hereinafter referred to collectively as “the officers”), forcibly entered the premises of plaintiff’s business, without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had engaged or was about to engage in any criminal activity, or that any criminal activity was occurring on the premises.

17. That after entering the premises, the officers searched the premises and searched and forcibly seized plaintiff, twisting plaintiff’s arm, pushing and pulling plaintiff, and placing plaintiff in handcuffs.

18. That the officers thereafter arrested and imprisoned plaintiff, again without a warrant and without probable cause or reasonable suspicion to believe that plaintiff engaged or was about to engage in criminal activity.

19. That plaintiff thereafter was imprisoned without his consent for a period of approximately twenty-four hours, until he was released from custody.

20. That after arresting plaintiff, the officers falsely accused plaintiff of various criminal acts, including operating an unlicensed liquor club and possession of marijuana, and fabricated evidence against plaintiff.

21. That the officers conveyed this false information and evidence to prosecutors.

22. That the false information and evidence that the officers conveyed to prosecutors was likely to influence a court or jury in connection with a determination as to plaintiff’s guilt or innocence.

23. That as a result of this false information and evidence, plaintiff suffered a denial of his liberty by being charged with various criminal offenses and being required to appear in court to defend against those charges.

24. That the aforesaid actions by the officers were done in retaliation for plaintiff having previously sued officers from the same precinct in which Chau, Rahim, and Fernandez worked, and were the types of acts that would cause a reasonable person to be dissuaded from exercising his right to free speech and his right to petition the government for redress of grievances.

25. That the aforesaid actions of the officers were intentional, spiteful, and malicious in nature.

26. That Chau, Rahim, and Fernandez observed the unlawful actions of their fellow officers, had the ability and opportunity to intervene to prevent or stop those unlawful actions, and intentionally and deliberately failed to do so.

27. That as a result of the foregoing, plaintiff suffered and continues to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, and economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

28. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

29. That the aforementioned actions of the officers constitute an assault and battery of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/False Imprisonment Under NY State Law)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforementioned actions of the officers constitute a false arrest and false

imprisonment of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST DEFENDANTS

CHAU, RAHIM and FERNANDEZ

(42 U.S.C. § 1983 Claim Arising From Fourth and Fourteenth Amendment Violations)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforementioned actions of the officers in unlawfully entering and searching the premises of plaintiff's business, seizing, searching, and assaulting and battering plaintiff, falsely arresting and imprisoning plaintiff, and maliciously prosecuting plaintiff, constitute illegal searches and seizures and deprivations of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

CHAU, RAHIM and FERNANDEZ

(42 U.S.C. § 1983 Claim Based On Denial Of Right To Fair Trial)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. That the aforesaid actions by the officers constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST DEFENDANTS
CHAU, RAHIM and FERNANDEZ
(42 U.S.C. § 1983 Claim Arising From First Amendment Violation)

36. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

37. That the aforesaid actions of the officers constitute a violation of plaintiff's rights of free speech and to petition government for redress grievances guaranteed by the First Amendment to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
CHAU, RAHIM and FERNANDEZ
(42 U.S.C. § 1983 Claim based on Failure to Intervene)

38. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

39. That the officers' failures to intervene to prevent and/or stop the improper and unconstitutional conduct of their fellow officers entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

40. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

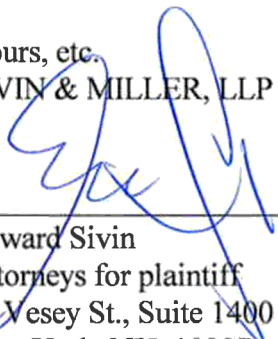
WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Chau, Rahim, and Fernandez, and attorney's fees against defendants Chau, Rahim, and Fernandez pursuant to 42 USC § 1988, and plaintiff also

demands the costs and disbursements of this action.

Dated: New York, New York
September 17, 2018

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

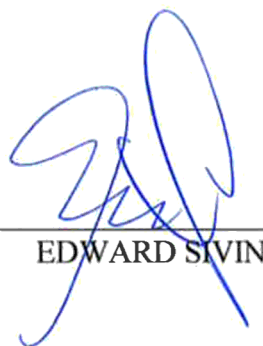
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
September 17, 2018


A handwritten signature in blue ink, appearing to read 'E. Sivin', is written over a horizontal line.

EDWARD SIVIN

Index No. Year 2018

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VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff

20 Vesey St., Suite 1400

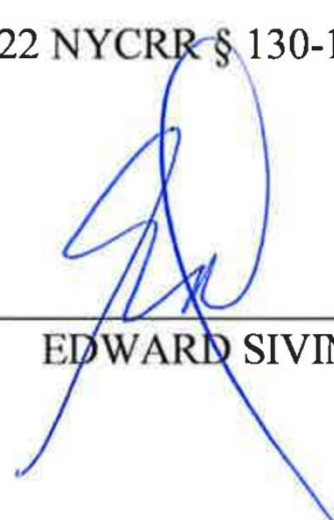
New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
September 17, 2018